



SPONSOR: Sen. Mantzavinos & Rep. Morrison

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 155

AN ACT TO AMEND TITLE 29 OF THE DELAWARE CODE RELATING TO THE DELAWARE NURSING HOME RESIDENTS QUALITY ASSURANCE COMMISSION.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend § 7907, Title 29 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows and by redesignating accordingly:

§ 7907. Delaware ~~Nursing Home Residents Quality Assurance~~ Residents' Protection Commission.

(a) (1) There is established a Delaware ~~Nursing Home Resident's Quality Assurance Commission~~ Residents' Protection Commission. The Commission's purpose is to monitor the quality of care, quality of life, and safety provided to Delaware's residents of long-term care facilities in both privately-operated and state-operated facilities, and to ensure that the appropriate oversight agencies respond in a timely manner to complaints of abuse, neglect, mistreatment, financial exploitation, and other claims.

(2) As used in this chapter:

a. "Commission" means the Delaware Residents' Protection Commission.

b. "Long-term care facility" means, collectively, a nursing facility, as "nursing facility" is defined in § 1102 of Title 16; an assisted living facility, as "assisted living facility" is defined in § 1102 of Title 16; and a secured memory care unit, as "secured memory care unit" is defined § 1102 of Title 16.

c. "Secretary" means the Secretary of the Department of Health and Social Services.

(b) The Commission is staffed by an Executive Director and supporting staff, who are responsible for ensuring that the Commission fulfills its purpose.

(1) The Executive Director may speak on behalf of the Commission, consistent with the Commission's purpose.

(2) A majority of the Commission members shall select the Executive Director and supporting staff. Once selected, the Executive Director and supporting staff are employees of the Administrative Office of the Courts ("AOC"), are subject to all of the AOC's employment policies and procedures, and serve at the pleasure of the Commission.

(c) The Commission consists of the following members:

- (1) One member appointed by the Speaker of the ~~House.~~ House of Representatives.
- (2) One member appointed by the President Pro Tempore of the Senate.
- (3) Four members serving by virtue of position, or a designee appointed by the member, as follows:
- a. The Attorney General.
 - b. The Executive Director of the Community Legal Aid Society, Inc.
 - c. The Executive Director of the Delaware Health Care Facilities Association.
 - d. The Executive Director of the Delaware Healthcare Association.
- (4) ~~Seven members appointed by the Governor as follows:~~ Three members appointed by the Governor, 1 from each county, each of whom who work in a long-term care facility.
- ~~a. One member who is a resident or a family member of a resident of a nursing home.~~
 - ~~b. Three members, 1 from each county, who work in a nursing home setting.~~
 - ~~c. A health-care professional.~~
 - ~~d. Two individuals who are each an advocate for people with disabilities or the elderly, or both.~~
- (5) Four members who are appointed by a majority vote of the members serving or appointed under paragraphs (c)(1), (2), (3)a., and (4) of this section, as follows:
- a. One member who is a resident or a family member of a resident of a long-term care facility.
 - b. Two members, each of whom is an advocate for individuals with disabilities, the elderly, or both.
 - c. One health-care professional.
- (d) A member who may select a designee must select the designee only from that member's organization, to serve in the member's stead and at the member's pleasure. The member must provide the designation to the Chair in writing. A designee has the same duties and rights as the member the designee represents.
- ~~(b)~~ (e) Membership on the Commission must be geographically distributed so that there are members ~~of the Commission~~ from each of the 3 counties.
- ~~(e)~~ (f) (1) The members ~~appointed by that~~ the Speaker and the President Pro Tempore ~~appoint~~ serve at the pleasure of their appointing authorities.
- (2) The term of a ~~Commission~~ member appointed under paragraphs (c)(4) or (5) of this section is 3 years; however, the ~~Governor~~ the member's appointing authority may appoint 1 or more members under ~~paragraph (a)(4)~~ paragraphs (c)(4) or (5) of this section for a term of less than 3 years to ensure that terms are staggered.
- (3) A member who is absent from 3 consecutive Commission meetings or 4 out of 12 consecutive meetings is deemed to have resigned, and the member's appointing authority may accept the member's resignation.

(d)(1) (g) The members of the Commission shall elect a Chair.

(2) (h) A majority of members must be present at a Commission meeting in order to have quorum and conduct official business. A vacant position is not counted for purposes of quorum. A motion by the Commission is approved upon the affirmative vote of a majority of members who are present at the meeting.

(3) (i) The Commission may adopt rules and bylaws necessary for its operation.

(e) (j) The Commission, as operated within the limitation of the annual appropriation and any other funds the General Assembly appropriates, provides staff for the Commission. The Commission may seek grant funding to provide staff for the Commission and support the Commission's purpose.

(f) (k) The Department of Justice shall provide legal advice to the Commission.

~~(g) The purpose of this Commission is to monitor Delaware's quality assurance system for nursing home residents in both privately operated and state-operated facilities so that complaints of abuse, neglect, mistreatment, financial exploitation, and other complaints are responded to in a timely manner to ensure the health and safety of nursing home residents.~~

(h) (l) The Commission shall meet, at a minimum, on a quarterly basis. The Commission may hold a virtual meeting under Chapter 100 of Title 29 (Freedom of Information Act), except that, for purposes of a Commission meeting, "anchor location" means a physical location within the geographical jurisdiction of the Commission that is open to the public and at which 1 or more Commission members or a member of the Commission's staff attend a virtual meeting.

(i) (m) The Commission's duties include all of the following:

(1) Examining policies and procedures and evaluating the effectiveness of the quality assurance and improvement system for nursing home residents, residents of long-term care facilities, including the respective roles of the Department of Health and Social Services, the Department of Justice and law-enforcement agencies, ~~and health-care professionals and nursing home providers.~~ professionals, and long-term care facility providers.

(2) Monitoring data and analyzing trends in the quality of ~~care and~~ care, quality of ~~life of term care in Delaware.~~ life, and the safety of residents of long-term care facilities.

(3) Reviewing and making recommendations to the Governor, Secretary, and the General Assembly concerning the quality assurance and improvement system and improvements to the overall quality of life and quality of care of nursing home residents. life, quality of care, and safety of residents of long-term care facilities.

(4) Protecting the privacy of ~~nursing home residents,~~ residents of long-term care facilities, including complying with the guidelines for confidentiality of records ~~established by that~~ the Division of Health Care Quality. Quality establishes.

(5) Promoting coordination among programs and services established for or related to long-term care facilities.

(6) Proposing legislation, regulations, and policies to improve the quality of care, quality of life, and safety of residents of long-term care facilities.

(n) Subcommittees. The Commission may form subcommittees as necessary to carry out the Commission's work.

(1) The Commission and its subcommittees may hear testimony and gather information and advice from non-Commission members.

(2) A subcommittee may act on behalf of the Commission, consistent with the Commission's purpose.

(j) (o) The Commission shall prepare and publish an annual report to the Governor, Secretary, the General Assembly, and the Director and the Librarian of the Division of Legislative Services. The annual report must include at least all of the following:

(1) Aggregate data with analysis and monitoring of trends in the quality of ~~care and~~ care, quality of life of ~~nursing home residents.~~ life, and safety of residents of long-term care facilities.

(2) ~~Rubric, criteria, findings,~~ Findings and recommendations from each facility long-term care facility visit.

(3) A summary of each recommendation and correspondence made to the Department of Health and Social Services, the Governor, the General Assembly, and other stakeholder organizations. The correspondence must be redacted to remove information that is not deemed a public record under § 10002 of this title.

(4) Summary of the Commission's review of relevant legislation, including the Commission's position on legislation and regulations ~~affecting nursing home residents.~~ affecting residents of long-term care facilities.

(5) Advocacy efforts and goals for the upcoming year.

(6) Summary of the Executive Director's duties, including the percentage of time devoted to each duty.

~~(k)~~ (p) Members of the Commission serve without compensation. However, members may be reimbursed for reasonable and necessary expenses incident to their duties as members of the Commission.

Section 2. This Act takes effect 90 days after enactment into law.

SYNOPSIS

This Act makes several changes to the Delaware Nursing Home Residents Quality Assurance Commission ("Commission"):

- Modernizes the Commission name to the "Delaware Residents' Protection Commission." The Joint Legislative Oversight and Sunset Committee, during its review of the Commission from 2020-2022, recommended the Commission change its name to something shorter that is easier to remember.

- Better delineates the Commission's duties.

- Clarifies the Executive Director's and supporting staffs' hiring process.

- Shifts the appointment of 4 Commission members from the Governor to the Commission members who represent governmental entities, to allow for faster appointment of members.

- Adds provisions to streamline the Commission's operations, including removal of a member who consistently misses meetings and approving Commission action on the affirmative vote of a majority of members present at a meeting.

- Gives the Commission the authority to seek grants to support the Commission's operations.

- Adds to the Commission's duties proposing legislation, regulations, and policies relating to long-term care facilities.

- Allows for the establishment of subcommittees to more effectively and efficiently meet the needs of the Commission

- Clarifies the Commission's responsibility to: advocate for residents of long-term care facilities; work with other agencies and groups to promote systemic reform; recommend changes in statute, regulations, and policies to improve the quality of care, quality of life, and safety of residents unable to protect themselves; and act as an informational resource for the public.

- Authorizes the Commission to hold a virtual meeting with a physical location open to the public if a Commission staff member is present at the anchor location.

This Act has an effective date of 90 days after the date of enactment into law, to provide the Commission with time to transition from the existing membership to the membership that this Act establishes.

This Act also makes technical corrections to conform existing law to the standards of the Delaware Legislative Drafting Manual.

Author: Senator Mantzavinos